



DEPARTMENT OF EARLY CHILDHOOD

General Early Childhood Administration and Programs

GENERAL EARLY CHILDHOOD RULES AND REGULATIONS

8 CCR 1401-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.100 AUTHORITY

These rules and regulations are adopted pursuant to the rulemaking authority provided in section 26.5-1-105(1)(a), C.R.S., and are intended to be consistent with the requirements of the State Administrative Procedures Act, section 24-4-101 through 24-4-204, (the "APA"), C.R.S.; the Anna Jo Garcia Haynes Early Childhood Act, Title 26.5 of the C.R.S. (the "Early Childhood Act"), C.R.S.; Colorado Nurse Home Visitor Program Act in sections 26.5-3-501 through 26.5-3-508, C.R.S.; and the Child Protection Act of 1987, in sections 19-3-301 through 19-3-317, C.R.S.

1.101 SCOPE AND PURPOSE

These rules and regulations shall govern the processes, procedures, and participation in the general administration of early childhood programs and services that are applicable across divisions within the Department; School Readiness Quality Improvement Program; Early Childhood Councils; and Nurse Home Visitor Programs in Colorado.

1.102 APPLICABILITY

The provisions of these rules and regulations shall be applicable to all services administered by the Department within the scope of its authority as granted in section 19-1-307(2)(i), (k)-(o), (t), and (y), C.R.S., Early Childhood Councils, and Nurse Home Visitor Program providers regulated by the Department.

1.103 ABUSE AND NEGLECT BACKGROUND CHECK FEES

- A. The Department shall assess a uniform fee for the purpose of conducting employment, volunteer, and substitute placement background screenings to determine if an individual has been confirmed in the state-wide information system, Colorado TRAILS system, as the person responsible in an incident of child abuse and/or neglect. The fee shall be established by the Department, and reviewed annually compliant with section 19-1-307(2.5), C.R.S., to ensure the fee does not exceed the direct and indirect costs of administering the services defined in sections 19-1-307(2)(i), (k)-(o), (t), and (y), C.R.S.
- B. The fee established by the Department to conduct employment, volunteer, and substitute placement background screenings must be consistent with the annual appropriation level set by the General Assembly, and all fees collected will be paid into the Records and Reports Fund. The Department shall publicly post the amount of the abuse and neglect background check fee on its website and provide reasonable notice on the website prior to the fee changing.

- C. The Department shall not set the fee above thirty dollars (\$30), unless specifically approved by the Executive Director of the Department to fund an increase in the direct and indirect costs of administering the services defined in sections 19-1-307(2)(i), (k)-(o), (t), and (y), C.R.S. If an increase in the fee amount is approved by the Executive Director of the Department, the Department will notify interested persons at least thirty (30) calendar days in advance on the Department's Public Notice Information webpage at: <https://cdec.colorado.gov/public-notice-information>, and the increase will be communicated by the Department.
- D. If the Department anticipates a reduction in the fee amount in compliance with section 19-1-307(2.5), C.R.S., the Department shall provide notice on the Department's Public Notice Information webpage at: <https://cdec.colorado.gov/public-notice-information>, and the decrease will be communicated by the Department.

1.200 COLORADO SCHOOL READINESS QUALITY IMPROVEMENT PROGRAM

The Colorado School Readiness Quality Improvement Program (SRQIP) is part of the Colorado Shines quality rating and improvement system. The purpose of the program is to improve the school readiness of children, five (5) years of age or younger, who are cared for at early childhood education programs pursuant to section 26.5-5-102, C.R.S. These rules are promulgated pursuant to section 26.5-5-102(6), C.R.S.

1.201 DEFINITIONS

- A. "Child" means a child five (5) years of age or younger.
- B. "Children with identified risk factors" means children who have risks that affect their overall learning ability and kindergarten readiness. Risks include, but are not limited to:
 - 1. A child with a disability or developmental delay under age five (5) who has an individual family service plan (IFSP), an individualized education program (IEP), or medical care plan;
 - 2. A child who has a home language other than English (English language learner);
 - 3. A child from a household that meets income eligibility criteria for Colorado Child Care Assistance Program;
 - 4. A child who is a migrant and meets the definition of "migratory child" in the Elementary and Secondary Education Act (ESEA), 20 U.S.C. section 6399(3);
 - 5. A child who resides on Indian lands;
 - 6. A child who is in foster care, kinship care or receiving services through the child welfare system;
 - 7. A child who is eligible to receive free or reduced-cost meals pursuant to the provisions of the federal National School Lunch Act;
 - 8. A child who is experiencing homelessness or frequent relocations to new residences by the child's family;
 - 9. Drug or alcohol abuse in the child's family;
 - 10. A child living in the home with an abusive adult; or

11. Either parent of the child was less than eighteen years (18) of age at the time of the birth of the child.
- C. “Colorado Shines quality rating and improvement system” referred to as the “Colorado Shines system” shall measure the level of preparedness of, and quality services provided by, an early childhood education program to prepare children to enter elementary school.
- D. “Early Childhood Council” means an early childhood council identified or established locally in communities throughout the state, pursuant to section 26.5-2-201, C.R.S., for the purpose of developing and ultimately implementing a comprehensive system of early childhood services to ensure the school readiness of children five (5) years of age or younger in the community.
- E. “Early childhood education program” means a licensed child care program pursuant to Part 3 of Article 5 of this Title 26.5 that provides child care and education to children five (5) years of age or younger.
- F. “High quality rating” means a quality rating level of three (3), four (4), or five (5) within the Colorado Shines system.
- G. “Intentional misrepresentation” means a deliberate and willful false representation by submission or omission from an individual or early childhood education program in an attempt to deceive in order to receive a higher Colorado Shines quality rating level. This includes but is not limited to the following:
 1. A false statement of material fact;
 2. Knowledge on the part of the individual that the statement and/or submitted document is untrue; or
 3. Intent of the applicant to deceive the state and agents working on behalf of the state.
- H. “State department” or “state” means the Colorado Department of Early Childhood.

1.202 APPLICATION FOR FUNDING

- A. An Early Childhood Council, convened through the Colorado Department of Early Childhood, seeking school readiness quality improvement program funds must apply directly to the state department through a formal procurement process that ensures an equitable distribution between rural and urban communities.
- B. To be eligible to receive school readiness quality improvement program funds through the Colorado Shines system, an Early Childhood Council must:
 1. Apply on behalf of the designated service area it represents.
 2. Prepare and submit to the state department a three (3) year school readiness plan that includes, at minimum:
 - a. A narrative that demonstrates the need to improve quality and increase the capacity of early childhood education programs in its service area, and

- b. Strategies developed in partnership with community partners to include, at minimum, county departments of human or social services, for how the Early Childhood Council will target and recruit licensed early childhood education programs that are rated in the Colorado Shines system, actively working toward achieving Colorado Shines system level two (2) rating to:
 - (1) Increase the access and availability of high quality child care for children participating in the Colorado Child Care Assistance Program created in Part 1 of Article 4 of Title 26.5;
 - (2) Target quality improvement funding to improve the level of quality at participating early childhood education programs; and
 - (3) Promote family involvement as aligned to the family engagement quality indicator within the Colorado Shines quality rating and improvement system framework.
 - 3. The Early Childhood Council must execute a memorandum of understanding with participating early childhood education programs to secure the program's commitment to engage in the Colorado Shines system and improve quality.
 - 4. The Early Childhood Council must make provisions to prioritize the distribution of quality improvement funding to early childhood education programs that serve children with identified risk factors.
- C. The state department shall contract with an existing early childhood council to implement the school readiness quality improvement program:
 - 1. In areas of the state that are not covered by an early childhood council; and
 - 2. In cases where the early childhood council that covers a particular area of the state did not apply.

1.203 EARLY CHILDHOOD EDUCATION PROGRAM ELIGIBILITY CRITERIA

- A. Early childhood education programs are eligible for quality improvement funding if participating in the Colorado Shines quality rating and improvement system.
- B. Quality improvement funds shall only be awarded to early childhood education programs that meet the following criteria:
 - 1. Rated in the Colorado Shines system at a quality level one (1) or higher and meets the Colorado Shines quality improvement eligibility criteria, as defined within the business rules of the current Early Childhood Council contract with the state; and
 - 2. Execute a memorandum of understanding with the Early Childhood Council serving the early childhood education program.
- C. Participating early childhood education programs will become ineligible if they are:
 - 1. In receipt of a notice of child care license revocation or suspension;
 - 2. Under review or determined to have committed intentional misrepresentation as defined in rule section 1.201(G);

3. Not compliant with memorandum of understanding executed between the Early Childhood Council and the early childhood education program; or
4. Not compliant with improvement in ratings as set forth in rule section 1.205.

1.204 COLORADO SHINES QUALITY RATING AND IMPROVEMENT SYSTEM

- A. The Colorado Shines quality rating and improvement system measures the level of preparedness of and quality services provided by an early childhood education program in the following five (5) standard areas:
 1. Workforce qualifications and professional development;
 2. Family partnership;
 3. Leadership, management, and administration;
 4. Learning environment; and
 5. Child health.
- B. The Colorado Shines system shall:
 1. Measure elements of quality at an early childhood education program;
 2. Be supported by statistically valid research as a reliable measure of quality of an early childhood education program;
 3. Include a quality improvement plan that informs participating early childhood education programs of their strengths and opportunities and provides early childhood education programs with strategies to improve the quality of their services;
 4. Demonstrate effectiveness at improving the level of quality of providers in geographically diverse Colorado communities; and
 5. Inform parents, counties, and other purchasers of early childhood care and education about the level of quality at an early childhood education program in a simple and easy-to-understand manner.

1.205 IMPROVEMENT IN RATINGS

- A. To be eligible for quality improvement funds, early childhood education programs are required to participate in the Colorado Shines quality rating system with the goal to earn and/or maintain a high quality level three (3) through five (5) rating as outlined in rule section 1.205(B).
- B. To maintain eligibility for funding, participating early childhood education programs must demonstrate specific and measurable gains at the conclusion of each consecutive Colorado Shines rating as follows:
 1. Early childhood education programs that complete an onsite Colorado Shines assessment and do not achieve a high quality rating must apply for a subsequent rating within an eighteen (18) month time period.
 2. Early childhood education programs that earn a quality rating level three (3) must meet one of the following criteria to maintain eligibility for funding:

- a. Increase their average environment rating scale score;
 - b. Increase their total quality points earned; or
 - c. Earn a quality rating level four (4) or five (5).
3. Early childhood education programs that earn a quality rating level four (4) or five (5) must maintain either a level four (4) or level five (5).
4. Early childhood education programs that do not maintain a high quality rating level during a rating cycle, must re-rate within an eighteen (18) month time period in order to remain eligible.

1.206 PUBLIC ACCESS TO RATINGS

- A. Once final, the state department publishes the early childhood education program's quality rating information on the Colorado Shines quality rating and improvement system website.
- B. Quality rating information is provided in plain language and includes the child care licensing reports of inspection for each early childhood education program.

1.207 DISPUTE RESOLUTION

- A. The state department, through the Division of Early Learning Access and Quality, shall provide for an informal dispute resolution process to include a consultation and appeal process, through the Colorado Shines system.
- B. Early childhood education programs shall be notified of the dispute resolution process by the Colorado Shines system rating administrator when participating in the post-rating assessment consultation. Information is additionally located within the online program portal.
- C. Early childhood education programs must request a post-rating assessment consultation within thirty (30) calendar days of receiving their assessment results and prior to submitting an appeal.
- D. Early childhood education programs must submit a written formal request for an appeal and all relevant documentation within ten (10) calendar days of receiving its post-rating assessment consultation.
- E. The formal appeal of the early childhood education program's assessment will be reviewed by the Colorado Shines assessment advisory committee, which determines whether errors have occurred and will adjust program scores, if warranted.
- F. Within the formal appeal process of the early childhood education program's assessment, all calculations will be based on the information gathered during the rating window.
 1. Early childhood education programs are responsible for submitting any relevant data to the Colorado Shines system rating administrator within ten (10) calendar days of the post-rating assessment consultation.
 2. Changes in the early childhood education program, such as the hiring of new staff that happened after the close of the rating window, will not be considered in the rescoring process.

- G. The Colorado Shines assessment advisory committee shall notify early childhood education programs of its decisions within ten (10) business days of the meeting at which the request for review was conducted.

1.300 EARLY CHILDHOOD COUNCILS

Each Early Childhood Council, whether newly established in a community or newly identified to serve as a council, shall work toward consolidating and coordinating funding. Together, the Early Childhood Councils throughout the state shall serve to create a seamless system of early childhood services representing collaboration among various public and private stakeholders for the effective delivery of early childhood services in the areas of early care and education, family support, mental health, and health. These services shall support children five (5) years of age or younger and their parents in a manner that is responsive to local needs and conditions. These rules are promulgated pursuant to sections 26.5-1-105(1) and 26.5-2-201, et. seq., C.R.S.

1.301 DEFINITIONS

- A. "Children" means children five (5) years of age or younger.
- B. "County Department" means the County or District Department of Human Services or Social Services.
- C. "Early care and education provider" is a required Early Childhood Council membership stakeholder group that includes, but is not limited to, a licensed and legally exempt child care provider; Head Start grantee; or district preschool program representative.
- D. "Early Childhood Council" means a council identified or established locally in communities throughout the state, either as a community consolidated child care services pilot site agency that existed prior to May 31, 2007, or pursuant to section 26.5-2-203, C.R.S., that represents public and private stakeholders for the purpose of developing and ultimately implementing a comprehensive system of early childhood services for children in the community to ensure school readiness. A council may be an Early Childhood Care and Education Council so long as no more than one council exists in a given service area.
- E. "Early Childhood Council membership" means the members of a voting body of an Early Childhood Council with governing authority over all of the council's duties enumerated in rule section 1.305.
- F. "Family support and parent education services" is a required Early Childhood Council membership stakeholder group that includes, but is not limited to, a representative from a home visitation program; family resource center; or income assistance program.
- G. "Health care entity" is a required Early Childhood Council membership stakeholder group that includes, but is not limited to, a representative from local public health; health care providers; Women, Infants, and Children (WIC) food nutrition service; Supplemental Nutrition Assistance Program (SNAP); Early and Periodic Screening, Diagnostic, and Treatment (EPSDT) program; or Parts B or C of the federal Individuals with Disabilities Education and Improvement Act.
- H. "Local government" is a required Early Childhood Council membership stakeholder group that includes, but is not limited to, a representative from the County Board of Commissioners; City Council; local school district board; or a local County Department of Human Services or Social Services.

- I. “Mental health care” is a required Early Childhood Council membership stakeholder group that includes, but is not limited to, a representative from the community mental health centers or a local mental health care provider.
- J. “Resource and referral agency” is a required Early Childhood Council membership stakeholder group that includes, but is not limited to, a representative from a child care resource and referral agency or other agency that provides this support for parents with children five (5) years of age or younger.
- K. “State department” means the Colorado Department of Early Childhood.

1.302 CREATION AND RECONFIGURATION PROCESSES

This rule is promulgated pursuant to sections 26.5-2-203(4) and 26.5-2-205, C.R.S.

- A. To create a new Early Childhood Council or reconfigure an existing Early Childhood Council, the Board(s) of Commissioners in the applicable county or counties must first designate a convening entity. This convening entity may be, but is not limited to, the following agency types:
 - 1. A local resource and referral agency;
 - 2. A County Department of Human Services or Social Services;
 - 3. A local school district; or
 - 4. Department of Public Health.
- B. The convening entity shall convene an Early Childhood Council, either as part of a single county or multi-county regional network, by submitting an application to the state department pursuant to the requirements of rule section 1.302(E).
- C. The convening entity shall initially approve the Early Childhood Council membership, ensuring the mandatory stakeholders listed in rule section 1.304 are included.
- D. Existing Early Childhood Councils may apply to merge or reconfigure pursuant to rule section 1.302. A reconfigured council replaces the councils named in the application to reconfigure.
- E. A convening entity’s application for an agency applying to be newly identified as a council or an existing Early Childhood Council(s) applying to be a newly created and reconfigured council shall designate, at minimum, the following information:
 - 1. An intended service area that complies with rule section 1.303;
 - 2. The county or counties involved with the council;
 - 3. The participating Early Childhood Council members that includes required stakeholders as set forth in rule section 1.304;
 - 4. The designated fiscal agent; and
 - 5. Signatures of the Chair or Chairs of the Board or Boards of County Commissioners of all counties involved in the council, the legal signatory for the counties, and the president of any school district Board of Education involved in the council.

- F. The state department's approval of an Early Childhood Council's application does not guarantee funds to that council, as set forth in rule section 1.306.

1.303 SERVICE AREA

This rule is promulgated pursuant to section 26.5-2-203, C.R.S.

- A. To the extent practicable, a service area of an Early Childhood Council shall be representative of the various public and private stakeholders in the local community who serve children.
- B. An Early Childhood Council's service area may include more than one county.
- C. No two Early Childhood Councils may cover the same service area.

1.304 GOVERNANCE

This rule is promulgated pursuant to sections 26.5-1-105(1) and 26.5-2-205, C.R.S.

- A. Early Childhood Council membership shall:
1. Reflect local needs and cultural and geographic diversity within the service area;
 2. Have voting rights;
 3. Consist of a minimum of ten (10) members;
 4. Include at least one representative, who operates or resides within the council's service area, from each of the following seven (7) mandatory stakeholder groups and making an effort to recruit stakeholders from diverse organizations when possible:
 - a. Early care and education;
 - b. Family support and parent education services;
 - c. Health care;
 - d. Local government;
 - e. Parent of a child five (5) years of age or younger;
 - f. Mental health care; and
 - g. Resource and referral agency.
 5. Early Childhood Council membership may also include, but is not limited to, representation from any combination of the following stakeholder groups within the council's service area:
 - a. Child care association;
 - b. Medical practice;
 - c. Dental practice;
 - d. School district parent organization;

- e. Head Start Policy Council;
 - f. Chamber of Commerce;
 - g. Local business;
 - h. Faith-based organization;
 - i. Nonprofit organization;
 - j. Higher education institution; and/or
 - k. Library.
- B. Each member of an Early Childhood Council shall sign a Memorandum of Understanding on behalf of the organization the member represents to participate in and collaborate on the work of the Early Childhood Council.
- C. Each Early Childhood Council shall submit a summary of justification and a request for approval to the state department in cases where:
 - 1. One (1) individual represents multiple, mandatory stakeholder groups on the Early Childhood Council membership; and/or
 - 2. A mandatory stakeholder group is vacant for more than ninety (90) days.
- D. Each Early Childhood Council shall adopt bylaws that provide for, at minimum:
 - 1. Early Childhood Council name;
 - 2. Early Childhood Council purpose;
 - 3. Requirements for membership;
 - 4. Members' roles and responsibilities;
 - 5. Process for selecting members;
 - 6. Rules for membership rotation and terms;
 - 7. How meetings will be conducted; and
 - 8. Meeting frequency and the quorum required for council action.
- E. Each Early Childhood Council shall designate and enter into a formal, written agreement with a fiscal agent that requires the fiscal agent to:
 - 1. Accept legal and financial responsibility for the work being performed under the contract, including all deliverables and deadlines associated with the council scope of work;
 - 2. Acknowledge that if work is not performed in accordance with the council contract, payment may be withheld by the state department;

3. Comply with fiscal contractual requirements, in accordance with the state fiscal rules (see 1 CCR 101-1) and applicable federal guidance (see 2 C.F.R. Part 200). The State of Colorado's Fiscal rules are located in 1 CCR 101-1 (07/01/2022), herein incorporated by reference; no later amendments or editions are incorporated by reference. These rules are available for public inspection at the Colorado Department of Early Childhood, Office of Program Delivery, 710 S. Ash St., Denver, CO 80246 or at <https://www.coloradosos.gov/CCR/Welcome.do>. Copies of these rules are available for reasonable cost during normal business hours at the Colorado Department of Personnel and Administration – Division of Finance and Procurement, 1525 Sherman St., Denver, CO 80203.

The Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards rules are located in 2 C.F.R. Part 200 (03/01/2023), herein incorporated by reference; no later amendments or editions are incorporated by reference. These regulations are available for public inspection at the Colorado Department of Early Childhood, Office of Program Delivery, 710 S. Ash St., Denver, CO 80246 or at www.ecfr.gov. Copies of these regulations are available for reasonable cost during normal business hours at the U.S. Department of Health and Human Services, 200 Independence Avenue, S.W., Washington, D.C. 20201.; and

4. Comply with the Colorado Information Security Act (section 24-37.5-401, et. seq., C.R.S.).
- F. In the case of an Early Childhood Council that is an incorporated legal entity, including a nonprofit corporation, the entity itself may serve as the fiscal agent, in which case it is directly responsible for the obligations set out in rule section 1.304(E).

1.305 EARLY CHILDHOOD COUNCIL DUTIES AND DELIVERABLES

This rule is promulgated pursuant to sections 26.5-1-105(1) and 26.5-2-206, C.R.S.

- A. Each Early Childhood Council is responsible for the following minimum duties and functions:
1. Apply for early childhood funding pursuant to section 26.5-2-207, C.R.S.;
 2. Develop and execute a strategic plan that responds to local needs and conditions to increase and sustain the quality, accessibility, capacity, and affordability of early childhood services for children and their parents;
 3. Establish a local system of accountability to measure local progress based on the needs and goals set for program performance;
 4. Report annually the results of the accountability measurements defined in the strategic plan;
 5. Select a fiscal agent to disburse funds and serve as the employer of the Council Director, once hired;
 6. Conduct a comprehensive evaluation and report, based on the strategic plan; and
 7. Actively inform and include small or under-represented early childhood service providers in Early Childhood Council activities and functions.
- B. Each Early Childhood Council shall submit and ensure that the state department has current record of the council governance structure, to include at minimum:

1. Early Childhood Council membership, to include the name and contact information for representatives from each of the mandatory stakeholder groups in rule section 1.304(A)(4);
 2. An organizational chart or other description of its officer/leadership structure, including current officers;
 3. The name and contact information for the Council Director, or, if none has been hired, an interim program contact employed by the fiscal agent;
 4. The Early Childhood Council bylaws; and
 5. An annual budget for developing a local early childhood system and infrastructure to improve and coordinate early childhood services.
- C. Each Early Childhood Council shall develop, execute, and submit for state department compliance review, an up-to-date organizational strategic plan that:
1. Reflects the state department priorities and performance standards to increase and sustain the quality, accessibility, capacity, and affordability of early childhood services for children and their parents;
 2. Responds to the early childhood needs and conditions in the designated service area based upon a rigorous assessment; and
 3. Sets measurable goals to increase and sustain quality, accessibility, capacity, and affordability of early childhood services for children and their parents.
- D. The strategic plan shall be developed at least once every five (5) years and include, at minimum:
1. A description of the long-term goals to be accomplished;
 2. A description of the short-term objectives;
 3. A description of the expected outcomes aligned with the goals and objectives; and
 4. A definition of the data, tools and methods for tracking progress towards the goals, objectives, and expected outcomes.
- E. Annually, each Early Childhood Council shall submit to the state department and its Early Childhood Council membership:
1. The current strategic plan; and
 2. A written, comprehensive evaluation and report of its progress based on the strategic plan accountability metrics.

1.306 STATE DEPARTMENT FUNDING REQUIREMENTS

This rule is promulgated pursuant to sections 26.5-2-204(5) and 26.5-2-207(2)(a), C.R.S.

- A. To be eligible to receive infrastructure, quality improvement, technical assistance, and evaluation funding from the state department, an Early Childhood Council must:

1. Be properly convened; and meet the minimum service area and governance standards in rule sections 1.303 and 1.304; and
 2. Submit a strategic plan for compliance review in accordance with rule section 1.305(C) and (D).
- B. Each Early Childhood Council seeking infrastructure, quality improvement, technical assistance, and evaluation funding shall submit an application to the state department that includes or describes:
1. The Council's designated service area, as described in rule section 1.303;
 2. The Council's current membership, including proof of a Memorandum of Understanding signed by the members representing each mandatory stakeholder group, as set forth in rule section 1.304(A)(4);
 3. The registered business name, certificate in good standing with the Colorado Secretary of State, and the D-U-N-S number for the designated fiscal agent;
 4. The capacity to comply with state department data entry and data reporting requirements, as defined by the state department and other applicable funding stream requirements;
 5. Current record of the council governance structure, as set forth in rule section 1.305(B);
 6. The Council director's signature; and
 7. The Council's strategic plan, in compliance with rule section 1.305(C) and (D).
- C. If an Early Childhood Council fails to maintain ongoing compliance with these funding requirements, including the requirement of a current strategic plan, the state department may deny its pending or immediately subsequent application for funding.
- D. Councils that have previously applied for and been denied funding by the state department may re-apply by showing current compliance with state requirements.
- E. Any Council may apply for a waiver of specific governance rules pursuant to rule section 1.304, upon a showing of substantial compliance and undue hardship. A Council shall submit any request for a waiver to the Early Childhood Leadership Commission, which shall consult with the state department on the request. The state department will grant such waivers upon recommendation by the Commission.

1.307 RULE WAIVER REQUEST

This rule is promulgated pursuant to sections 26.5-1-105(1), 26.5-1-303(1)(d), and 26.5-2-207, C.R.S.

- A. A local Early Childhood Council may submit a rule waiver request to the Early Childhood Leadership Commission for any rule, that would prevent a Council from implementing council projects related to the minimum duties and functions defined in rule section 1.305(A).
- B. The Early Childhood Council submitting a waiver request is required to demonstrate that the waiver in question is necessary to support implementation of the Early Childhood Council projects related to the minimum duties and functions set forth in rule section 1.305(A).
- C. The waiver request shall be submitted in writing to the Early Childhood Leadership Commission Director.

1.400 NURSE HOME VISITOR PROGRAM

1.401 DEFINITIONS

- A. "Alternative Nurse Home Visitation Program" means a program that provides home visits by nurses but is not the program described in section 26.5-3-504(1), C.R.S., but does qualify for funding from the Nurse Home Visitor Program Fund because it meets the requirements of section 26.5-3-506, C.R.S., and rule section 1.410 of these rules.
- B. "Conflict of interest" means a personal or financial interest that could reasonably be perceived as an interest that may influence an individual in their official duties.
- C. "Entity" means any nonprofit, not-for-profit, or for-profit corporation; religious or charitable organization; institution of higher education; visiting nurse association; existing visiting nurse program; county, district, or municipal public health agency; county department of human or social services; political subdivision of the state; or other governmental agency; or any combination thereof.
- D. "Expansion site" means a program that is already serving at least fifty (50) low-income, first-time mothers, through a grant received under these rules, in the previous fiscal year, and the implementing entity is applying for additional funding to enable it to serve additional low-income, first-time mothers.
- E. "Financial interest" means a substantial interest held by an individual which is an ownership or vested interest in an entity, or employment or a prospective employment for which negotiations have begun, or a directorship or officership in an entity.
- F. "Health sciences facility" means the Anschutz medical campus or a successor facility located at the university of Colorado health sciences center that is selected by the president of the university of Colorado pursuant to section 26.5-3-505, C.R.S., to assist the executive director in administering the program.
- G. "Low-income" means an annual income that does not exceed two hundred percent (200%) of the federal poverty line.
- H. "New entity" means any entity that has not previously received funding for the program pursuant to these rules.
- I. "Nurse" means a person licensed as a professional nurse pursuant to part 1 of article 255 of Title 12, , C.R.S., or accredited by another state or voluntary agency that the state board of nursing has identified by rule pursuant to section 12-255-107(1)(a), C.R.S., as one whose accreditation may be accepted in lieu of board approval.
- J. "Nurse Home Visitor Program" or "Program" means the nurse home visitor program established in part 5 of article 3 of Title 26.5, C.R.S.
- K. "Nurse Home Visitor Program Fund" means the fund described in section 26.5-3-507(2)(c), C.R.S.
- L. "Nurse supervisor" means a nurse with a Master's degree in nursing or public health, unless the implementing entity can demonstrate that such a person is either unavailable within the community or an appropriately qualified nurse without a Master's degree is available.
- M. "State Department" means the Colorado Department of Early Childhood.

- N. "Visit protocols" mean nurse home visit guidelines addressing, at a minimum, prenatal, infancy and toddler development. The visit protocols must cover topics such as positive birth outcomes, parental life course development and parenting skills.

1.402 PROCEDURES FOR GRANT APPLICATION

A. Grant Application Contents

1. All applications shall be submitted to the state department by entities as defined in rule section 1.401(D) in accordance with these rules and shall contain, at a minimum, the basic program elements specified in section 26.5-3-506(1), C.R.S., and the following information. A budget which includes each of the following:
 - a. Salaries and benefits for the staff required in rule section 1.407;
 - b. Costs of the training provided by the health sciences facility, and costs to cover any other training required by the health sciences facility. Allowable costs include, but are not limited to, travel costs and training materials;
 - c. Costs to purchase and maintain the management information system and related technical assistance;
 - d. Operating costs, including, but not limited to, office and program supplies, postage, telephones, computer(s) with internet access, liability insurance, medical supplies, mileage reimbursement and other staff development for the required staff;
 - e. A description of how the applicant will fund any additional costs not funded by the grant;
 - f. Any in-kind contributions the applicant or other stakeholders in the community may donate.

2. Applications for New Entities

In addition to the requirements of rule section 1.402(A)(1), applications for new entities shall contain, at a minimum, the following information:

- a. A description of the experience the applicant has working with the target population and existing home visitation programs;
- b. A description of the community support for the program and for the applicant as the lead organization in its implementation, including detailed information about the broad-based support for the program's implementation. Breadth of community support shall be judged by the diversity of those involved in supporting the program's implementation, and can be evidenced through letters of support and more formal referral relationships among various community organizations and the applicant;
- c. A description of the specific needs of the population to be served including, but not limited to, the socio-demographic and health characteristics that justify the need for the program and the number of first-time, low-income mothers eligible for the program;

- d. A description of the relationship of the applicant with the schools, prenatal clinics and other referral sources for the first-time, low-income mothers who will be served by the program, with specific information about the duration of these relationships;
 - e. A description of the nature and duration of the referral linkages that exist between the applicant and other service providers throughout the community including, but not limited to, providers of social services, mental health services, workforce preparation services, job training services, legal services, health care services and child care services;
 - f. Except as provided in rule section 1.409, a description of a plan for recruiting at least one hundred (100) first-time, low-income mothers;
 - g. A description of the collaboration between the applicant and other entities providing similar services to the same population, including plans for coordination and a description of how the program will fit in with and complement the community's efforts to meet the needs of the target population, if applicable;
 - h. A plan for hiring and retaining qualified staff that represents the community's racial and cultural diversity;
 - i. A description of the applicant's capacity to comply with and monitor the implementation of the grant requirements;
 - j. Summary of the major strengths of the applicant and the community that will lead to successful implementation of the program;
 - k. A statement as to whether the applicant plans to work collaboratively with other entities in either administering the program or through an oversight board, and whether the other entities are other counties, municipalities, agencies, or organizations; and
 - l. If an applicant currently provides services in compliance with rule sections 1.406 through 1.409, using funding other than from the Nurse Home Visitor Program Fund, the applicant shall state if:
 - 1) The applicant expects to continue to receive funding from such alternative funding source; and
 - 2) Funds received pursuant to these rules will be used to increase the number of clients served.
3. Applications for Multiple Community Collaboration
- If multiple communities with lower birth rates need to collaborate to meet the one hundred (100) family requirement, the applicant shall provide specific plans that address the mechanisms and history of the collaboration in addition to complying with the requirements of rule sections 1.402(A)(1) and (2). The plan shall include, but not be limited to, examples of previous collaborations.
4. Applications for Expansion Sites
- In addition to complying with the requirements of rule section 1.402(A)(1), each expansion site shall submit the following in its application:

- a. Confirmation that the entity has implemented the program in compliance with these rules;
- b. A description of additional community demand for the program that is not being met through the current funding;
- c. A specific plan for building additional infrastructure to support the expansion of the program including, but not limited to, physical space, staff supervision, and computer data entry personnel;
- d. A description of how the implementing entity has addressed previous specific challenges relating to the program;
- e. A plan describing the implementing entity's strategy to recruit and train sufficient qualified nurses to implement and expand the program; and
- f. A description of community support for the planned expansion of the program.

B. Timelines for Grant Applications

Grant applications may be solicited up to two (2) times each fiscal year.

1.403 REVIEW OF APPLICATIONS

- A. The state department shall conduct an initial technical review of submitted applications to ensure that all required components are included.
- B. After the state department's technical review of the applications, the health sciences facility shall review the applications and shall select a list of entities that the health sciences facility recommends to administer the program in communities throughout the state.
- C. The state department shall review the budget and budget justification in the application of each selected entity and provide technical assistance to ensure an accurate budget to support implementation in accordance with program requirements.

1.404 CRITERIA FOR SELECTION OF ENTITIES

- A. At a minimum, the following criteria shall be used for selecting potential grantees:
 1. The applicant meets the definition of an "entity" as defined in rule section 1.401(D);
 2. The entity submits a completed application in accordance with the requirements of rule section 1.402;
 3. The entity demonstrates the capacity and ability to adequately administer and implement the program;
 4. The entity demonstrates that it will comply with the requirements of rule sections 1.406 through 1.408;
 5. The entity's geographic service area and/or the population it serves advances the implementation of the program in communities throughout the state; and
 6. The entity is selected on a competitive basis.

- B. More than one (1) entity may receive funding in a particular community if it can demonstrate in its application:
 - 1. Broad community support for the implementing entity;
 - 2. Existence of a sufficient number of eligible women to support multiple implementing entities;
 - 3. Existence of close coordination and mutual support between the entities; and
 - 4. A specific plan for the coordination by the applying entity and other nurse home visitation programs in the community.
- C. Special consideration shall be given to entities that are proposing to administer the program as a collaborative effort among multiple entities.

1.405 AWARDING OF PROGRAM GRANTS

- A. The Executive Director or Designee shall approve grants and award funding to the entities selected on a competitive basis by the health sciences facility.
- B. The grant awards may, at a minimum, include monies to fund:
 - 1. Reasonable and necessary salaries and benefits for nurses, nurse supervisors, and data entry employees;
 - 2. Reasonable and necessary operating costs, including but not limited to, medical, program and office supplies, telephones, computer equipment, mileage reimbursement, any required insurance, and staff development;
 - 3. Reasonable and necessary training, training materials and travel costs associated with obtaining training required by rule section 1.406(A);
 - 4. Reasonable and necessary cost for purchasing the management information system, and any related technical assistance; and
 - 5. Reasonable and necessary costs for developing any infrastructure necessary for program administration and implementation.

1.406 PROGRAM REQUIREMENTS

- A. Training Requirements

Each nurse employed by an entity to provide nurse home visiting services through the Nurse Home Visitor Program shall be required, at a minimum, to attend and complete the following training:

- 1. Preparatory study educating nurse home visitors on their nurse home visitor role and competencies, including:

- a. Applying theories and principles integral to implementation of the Nurse-Family Partnership Model. (2019), herein incorporated by reference. No later editions or amendments are incorporated. A copy of the principles are available from the U.S. Department of Health and Human Services, Administration of Children & Families, at [https://homvee.acf.hhs.gov/implementation/Nurse-Family%20Partnership%20\(NFP\)%C2%AE/Model%20Overview](https://homvee.acf.hhs.gov/implementation/Nurse-Family%20Partnership%20(NFP)%C2%AE/Model%20Overview). A copy is also available from the State Department for inspection and copying at 710 S. Ash St., Bldg. C., Denver, CO 80246 during normal business hours.
 - b. Using evidence from randomized trials and data collection software to guide and improve practice.
 - c. Delivering individualized client care across the six (6) domains of Personal Health, Environmental Health, Life Course, Maternal Role, Friends and Family, and Health and Human Services.
 - d. Establishing therapeutic relationships with clients.
 - e. Utilizing reflective process to improve practice.
2. Interactive training where nurse home visitors receive instruction and assistance to begin applying information. This training prepares new nurses to implement the intervention with fidelity to the Nurse-Family Partnership Model.
3. Training to give nurses an opportunity to deepen their understanding of the Nurse-Family Partnership Model, specifically regarding:
 - a. Infant temperament;
 - b. Motivational interviewing; and
 - c. Fidelity to the model elements.

B. Visit Protocols

The visit protocols followed by the entity in administering the program shall cover information specific to prenatal, infant, and toddler phases. The visit protocols shall, at a minimum, address:

1. The physical and emotional health of the mother and the baby, including information for the mother on the importance of nutrition and avoiding alcohol and drugs, including nicotine;
2. The environmental health issues such as ensuring a safe environment for the child;
3. The life course development for the mother, including employment, educational achievement, budgeting and financial planning, transportation and housing;
4. The parental role and responsibilities; and
5. The role of family and friends in supporting goal attainment.

C. Program Management Information Systems

The management information system used by the entity in administering and implementing the program shall, at a minimum, include the following:

1. Documentation of the services received by clients enrolled in the program;
2. Information to assist the program staff in tracking the progress of families in attaining program goals;
3. Information to assist nurse supervisors in providing feedback to individual nurse home visitors on strengths and areas for improvement in implementing the program; and
4. Information to assist program staff in planning quality improvements to enhance program implementation and outcomes.

D. Reporting and Evaluation System

1. At least once (1 time) every month, each implementing entity shall submit the data generated by the management information system required by rule section 1.406(C), to the health sciences facility.
2. The data will be analyzed and the health sciences facility shall make available, on no less than a quarterly basis, a report to the entity evaluating the program's implementation, and on a semi-annual basis shall also make available reports on benchmarks of program outcomes.
3. The implementing entity shall submit an annual report that complies with the requirements in rule section 1.411 to both the health sciences facility and the community in which the entity implements the program that reports on the effectiveness of the program within the community.
4. The annual report shall be submitted on or before March 1, or not later than sixty (60) days after the end of the fiscal year for which funding was provided if the program has not submitted a request for continuation of funding. The annual report shall be written in a manner that is understandable for both the health sciences facility and members of the community that the program serves.

1.407 STAFFING REQUIREMENTS

- A. For every one hundred (100) low-income, first-time mothers enrolled in the program, the program shall, at a minimum, have the following staff:
1. Four (4) full time equivalent (FTE) nurses;
 2. One (1) half FTE nurse supervisor, and
 3. One (1) half FTE data entry/clerical support person.
- B. The data entry/clerical support person shall provide office support to the nursing staff and assure data are submitted as required by rule sections 1.406(C) and (D).
- C. The caseload for any one (1) nurse at one (1) time shall not exceed twenty-five (25) low-income, first-time mothers.

1.408 ELIGIBILITY OF CLIENTS

- A. At a minimum, the following is required to be eligible to receive program services:

1. A mother with an annual income that does not exceed two hundred percent (200%) of the federal poverty line;
 2. No previous live births; and
 3. Enrolled in the program during pregnancy or prior to the end of the first (1st) month of the baby's life.
- B. Preference will be given to mothers who enroll in the program prior to the twenty-eighth (28th) week of pregnancy.

1.409 NUMBER OF CLIENTS SERVED; WAIVER

- A. Except as provided in rule section 1.409(B), each entity shall provide services to a minimum of one hundred (100) low-income, first-time mothers in the community in which the program is administered and implemented.
- B. Small Community Size:
1. If the population base of a community does not have the capacity to enroll one hundred (100) eligible families, an entity may apply to the state department for a waiver from this requirement.
 2. Prior to granting any waivers, the state department shall consult with the health sciences facility to ensure that the entity can implement the program within a smaller community and comply with program requirements.

1.410 AVAILABILITY OF FUNDING FOR ALTERNATIVE NURSE HOME VISITATION PROGRAMS

- A. An alternative nurse home visitation program may qualify for funding under the nurse home visitor program, if the alternative nurse home visitation program:
1. Has been in operation in the state as of July 1, 1999, for a minimum of five (5) years;
 2. Has achieved a significant reduction in each of the following:
 - a. Infant behavioral impairments due to use of alcohol and other drugs, including nicotine;
 - b. The number of reported incidents of child abuse and neglect among families receiving services;
 - c. The number of subsequent pregnancies by mothers receiving services;
 - d. The receipt of public assistance by mothers receiving services; and
 - e. Criminal activity engaged in by mothers receiving services and their children.
- B. Any alternative nurse home visitation program qualifying for funding under this section shall be exempt from the requirements of rule section 1.406, if it continues to demonstrate significant reductions in the occurrences specified in rule section 1.410(A)(2).
- C. Any alternative nurse home visitation program qualifying for funding under this section shall comply with the requirements of rule section 1.411.

1.411 REPORTING REQUIREMENTS FOR TOBACCO SETTLEMENT PROGRAMS

- A. All programs shall annually submit to the state department a report which, at a minimum, includes the following information:
1. The amount of master settlement agreement moneys, as described in section 26.5-3-503(4), C.R.S., received by the program for the preceding fiscal year;
 2. A description of the program, including the program goals, population served by the program, the actual number of people served, and the services provided; and
 3. An evaluation of the operation of the program, which includes the effectiveness of the program in achieving its stated goals.

1.412 CONFLICTS OF INTEREST

- A. Applicability

Except as provided for in sections 26.5-3-505 through 26.5-3-508, C.R.S., regarding the health sciences facility, this section applies to any person involved in:

1. The review of completed applications; or
2. Making recommendations to the state department regarding an entity that may receive a grant and the amount of said grant.

- B. Prohibited Behavior

No person who is involved in the activities specified in rule section 1.412(A), shall have a conflict of interest. Such conflict of interest includes, but is not limited to, any conflict of interest involving the person and the grantee, or the person and the tobacco industry.

- C. Responsibilities of Persons with a Potential Conflict of Interest

A person who believes that they may have a conflict of interest must disclose such conflict of interest as soon as they become aware of the conflict of interest, and shall disclose the conflict of interest in writing to the state department. If the state department determines the existence of a conflict of interest, the person must recuse themselves from any of the activities specified in rule section 1.412(A), relating thereto.

1.413 CRITERIA FOR REDUCTION OR CESSATION OF FUNDING

- A. Upon recommendation from the health sciences facility, the state department may reduce or eliminate the funding of a program if the entity is not operating the program in accordance with the program requirements established in rule sections 1.406 through 1.408, except as provided in rule section 1.410, or is operating the program in such a manner that it does not demonstrate positive results.
- B. An entity shall receive written notification from the state department if the entity's funding is subject to reduction or elimination.
- C. Any reduction or elimination in funding is subject to the due process requirements outlined in section 24-4-105, C.R.S.

Editor's Notes

History

New rule eff. 07/15/2023.

Rules 1.100-1.103, 1.306 A.2, 1.306 B.7, 1.400-1.413 eff. 02/14/2024.